

Tamil Nadu Cultivating Tenants Arrears of Rent (Relief) Act, 1990

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State of Tamilnadu- Act

Tamil Nadu Cultivating Tenants Arrears of Rent (Relief) Act, 1990

TAMILNADU

India

Tamil Nadu Cultivating Tenants Arrears of Rent (Relief) Act, 1990

Act 38 of 1990

Published on 14 September 1990

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Tamil Nadu Cultivating Tenants Arrears of Rent (Relief) Act, 1990

(Tamil Nadu Act

38 of 1990

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Statement of Objects and Reasons - Tamil Nadu Cultivating Tenants Arrears of Rent (Relief) Act, 1990 (Tamil Nadu Act 38 of 1990

). - By the Tamil Nadu Cyclone and Flood Affected Areas Cultivating Tenants (Special Provisions) Act, 1986 (Tamil Nadu Act

60 of 1986

) cultivating tenants in the areas specified in the Schedule to the said Act were given relief in the matter of payment of arrears of rent which accrued due to a landlord before the 30th June 1985 and was outstanding on the date of the

publication of the said Act, namely, the 19th September 1986 in five equal instalments without interest. The last instalment thereof had to be paid on or before the 30th September 1988.

2. On account of failure of North East Monsoon in 1988, the cultivating tenants were not in a position to pay arrears of rent and they were liable to be evicted on a large scale. By the Tamil Nadu Cultivating Tenants (Protection from Eviction) Act, 1989 (Tamil Nadu Act 41 of 1989), cultivating tenants in Tamil Nadu were given protection from eviction for non-payment of arrears of rent accrued due on the 30th September 1986 and rent accrued due for the subsequent period up to the 20th February 1989 to the land lords, up to and inclusive of the 31st March 1990.

3. Since large amount of arrears of rent has accumulated due to the protection given to the tenants over a long period of time, it will not be possible for the cultivating tenants to pay the arrears in a lump sum and they are in danger of being evicted on a large scale. The Government have decided to give relief to the cultivating tenants by discharging them from the payment of all arrears of rent payable to the landlord or public trust for the fasli year ending with the 30th June 1989 and for any previous fasli year and outstanding on the date of the publication of the proposed Act, if he pays the rent due for the current fasli year, i.e., the 1st July 1989 to the 30th June 1990, in full and one fourth of the total amount of arrears of rent (without interest) which accrued due to the landlord or public trust for the period ending with the 30th June 1989 on or before the 31st March 1991; or if he pays the current rent in full on or before the 31st March 1991 and one third of the total amount of arrears of rent (without interest) which accrued due to the landlord or public trust for the period ending with the 30th June 1989 in five equal annual instalments and the first instalment shall be paid on or before the 31st March 1991. The Government have also decided to restore possession of lands to cultivating tenants who had been evicted on or after the 1st April 1990, but before the date of the publication of the proposed Act in the Tamil Nadu Government Gazette, for non-payment of arrears of rent.

4. The Bill seeks to achieve the above objects.

Published in Part IV-Section 4 of the Tamil Nadu Government Gazette, dated the 9th May 1990.

Statement of Objects and Reasons - Tamil Nadu Cultivating Tenants Arrears of Rent (Relief) Amendment Act, 1991 (Tamil Nadu Act 16 of 1991). - The Tamil Nadu Cultivating Tenants Arrears of Rent (Relief) Act, 1990 (Tamil Nadu Act 38 of 1990

) provides relief to the cultivating tenants by discharging them from the payment of all arrears of rent payable to the landlord or public trust for the fasli year ending with the 30th June 1989 and for any previous fasli year and outstanding on the date of the publication of the said Act, that is, the 10th October 1990, if he pays the rent due for the current fasli year, that is, from the 1st July 1989 to the 30th June 1990, in full and one-fourth of the total amount of the said arrears of rent (without interest) on or before the 31st March 1991, or if he pays the current rent in full on or before the 31st March 1991 and one-third of the total amount of arrears of rent (without interest) in five equal annual instalments and the first instalment shall be paid on or before the 31st March 1991. Under section 4 of the said Act, the cultivating tenant shall intimate his option to the competent authority for availing any one of the aforesaid reliefs under the said Act within two months from the date of publication of the said Act, that is, the 10th October 1990. The two months period was due to expire on the 9th December 1990. Report was received that only a few cultivating tenants had exercised option. With a view to enabling all eligible cultivating tenants to avail the relief under the said Act, the Government decided to extend the time limit for exercising the option by another two months from the 10th December 1990. Opportunity was availed of to amend clause (ii) of sub-section (5) of section 5 of the said Act to change the reference to "one-fourth of the arrears of rent" as "any such arrears of rent" to make the intention clear. Accordingly, the Tamil Nadu Cultivating Tenants Arrears of Rent (Relief) Amendment Ordinance 1990 (Tamil Nadu Ordinance 10 of 1990) was promulgated by the Governor to give effect to the above decisions.

2. The Bill seeks to replace the said Ordinance.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated 21st January 1991.

Statement of Objects and Reasons - Tamil Nadu Cultivating Tenants Arrears of Rent (Relief) Second Amendment Act, 1991 (Tamil Nadu Act 25 of 1991). - The Tamil Nadu Cultivating Tenants Arrears of Rent (Relief) Act, 1990 (Tamil Nadu Act

38 of 1990

), provides relief to the cultivating tenants by discharging them from the payment of all arrears of rent payable to the landlord or public trust for the fasli year ending with the 30th June 1959 and for any previous fasli year and outstanding on the date of the publication of the said Act, that is, the 10th October 1990, if he pays the rent due for the current fasli year, that is, from the 1st July 1989 to the 30th June 1990, in full and one-fourth of the total amount of the said arrears of

rent (without interest) on or before the 31st March 1991, or if he pays the current rent in full on or before the 31st March 1991 and one-third of the total amount of arrears of rent (without interest) in five equal annual instalments and the first instalment shall be paid on or before the 31st March 1991.

2. Sections 5(3) and 7(3) of the said Act require the Court or the competent authority to determine after a summary enquiry and after issue of notice to the landlord or to the public trust, as the case may be, regarding the correct amount of payment to be made by the cultivating tenants as specified in the Act and if not, the Court or the competent authority has to allow the cultivating tenants to deposit further sum due, within a further time not exceeding thirty days from the 31st March 1991. There are five Revenue Courts for the entire State and reports have been received that large number of cultivating tenants have intimated their option to the Revenue Courts. Two or three opportunities have to be given to the landlord and to the cultivating tenant before determining the correct amount to be paid by the cultivating tenant. It would not be possible for the Revenue Courts referred to above to decide the case within thirty days from the 31st March 1991. Hence, to enable the Revenue Courts to decide the issue as per the Act, the Government decided to extend the aforesaid maximum time limit of thirty days to four months. Accordingly, the Tamil Nadu Cultivating Tenants Arrears of Rent (Relief) Second Amendment Ordinance, 1991 (Tamil Nadu Ordinance 3 of 1991) was promulgated by the Governor on the 30th April 1991.

3. The Bill seeks to replace the said Ordinance.

Published in Part IV-Section 4 of the Tamil Nadu Government Gazette, dated the 30th April 1991.

Received the assent of the Governor on the 14th September 1990 and published in Part IV-Section 2 of the Tamil Nadu Government Gazette Extraordinary, dated the 9th October 1990.

An Act to provide relief to cultivating tenants in respect of certain arrears of rents.

Whereas by the Tamil Nadu Cultivating Tenants (Protection from Eviction) Act, 1989 (Tamil Nadu Act 41 of 1989), cultivating tenants in the State were given protection from eviction on the ground of arrears of rent;

And Whereas, the said Act was in force up to and inclusive of the 31st day of March 1990;

And Whereas, after the expiration of the said Act, it will be difficult for the cultivating tenants to pay the entire arrears of rent;

And Whereas, due to default in the payment of arrears of rent, landlords may take action against cultivating tenants for eviction and for recovery of arrears of rent;

And Whereas, in the interests of the general public, cultivating tenants should, at the present time, be spared the distractions and expenditure involved in such action in order that the maximum possible advantage may result to the State in the matter of production of food crops;

And Whereas, it is considered necessary, as part of agrarian reform, to give relief to cultivating tenants from the heavy burden of discharging arrears of rent, on certain conditions specified;

Be it enacted by the Legislative Assembly of the State of Tamil Nadu in the Forty-first Year of the Republic of India as follows:-

Part I ? Preliminary

1.

Short title and extent.

(1)

This Act may be called the Tamil Nadu Cultivating Tenants Arrears of Rent (Relief) Act, 1990.

(2)

It extends to the whole of the State of Tamil Nadu.

2.

Declaration.

- It is hereby declared that this Act is for giving effect to the policy of the State towards securing the principles laid down in clause (c) of Article 39 of the Constitution.

3.

Definitions.

- In this Act, unless the context otherwise requires,-

(a)

"competent authority" means-

(i)

in relation to a cultivating tenant as defined in the Tenants Protection Act, the Revenue Divisional Officer in whose jurisdiction the holding in question or part thereof is situate, or an officer of the Revenue Department not lower in rank than the Revenue Divisional Officer empowered by the State Government in this behalf; and

(ii)
in relation to a cultivating tenant as defined in the Public Trusts Act, the authorised officer;

(b)
"Court" means-

(i)
any Court in which any suit or proceeding for the recovery of any arrears of rent from a cultivating tenant is pending on the date of the publication of this Act; or

(ii)
any court which has passed a decree or order for such recovery; or (ii) any court to which such decree or order has been sent for execution;

(c)
"cultivating tenant" means-

(i)
a cultivating tenant as defined in clause (aa) of section 2 of the Tenants Protection Act; or

(ii)
a cultivating tenant as defined in clause (5) of section 2 of the Public Trusts Act;

(d)
"current rent" means the whole of the rent due for the fasli year commencing on the 1st day of July 1989 and ending with the 30th day of June 1990;

(e)
"date of the publication of this Act" means the date of the publication of this Act in the Tamil Nadu Government Gazette;

(f)
"landlord" means a landlord as defined in clause (e) of section 2 of the Tenants Protection Act and includes a public trust as defined in clause (25) of section 2 of the Public Trusts Act;

(g)
"pay" , with its grammatical variations, includes deliver;

(h)
"Public Trusts Act" means the Tamil Nadu Public Trusts (Regulation of Administration of Agricultural Lands) Act, 1961 (Tamil Nadu Act 57 of 1961);

(i)
"Tenants Protection Act" means the Tamil Nadu Cultivating Tenants Protection Act, 1955 (Tamil Nadu Act XXV of 1955);

(j)
all other words and expressions used, but not defined in this Act and defined in the Tenants Protection Act or in the Public Trusts Act shall have the same meaning as in the Tenants Protection Act or in the Public Trusts Act, as the case may be.

4.
Option for payment of arrears of rent.

(1)
Any cultivating tenant who is in arrears of rent payable to the landlord for the fasli year ending with the 30th day of June 1989 and for any previous fasli year (hereinafter referred to as the said years) and outstanding on the date of the publication of this Act shall, within [four months]

[Substituted for the words 'thirty days' by the Tamil Nadu Cultivating Tenants Arrears of Rent (Relief) Amendment Act, 1991 (Tamil Nadu Act 16 of 1991).]

from the date of such publication, intimate his option in writing to the competent authority-

(i)
to pay the current rent and the one-fourth of the said arrears of rent in the manner specified in Part II; or

(ii)
to pay the current rent and the one-third of the said arrears of rent in the manner specified in Part III,

of this Act for availing relief under this Act from the payment of the said arrears of rent.

(2)

The option given under sub-section (1) shall be final.

Expression "arrears of rent payable to the landlord" - Meaning of. - The petitioner, a cultivating tenant, was in arrears of rent for faslis 1391 to 1398. The total rent payable for these years was Rs. 1.26.000 and

Part II ? Relief for Payment of Arrears of Rent

5.

Relief for payment of arrears of rent.

(1)

All arrears of rent payable by a cultivating tenant to the landlord for the said years and outstanding on the date of the publication of this Act, shall be deemed to be discharged, whether or not a decree or order has been obtained therefor, if such cultivating tenant pays to the landlord or deposits in the Court or before the competent authority, to the account of the landlord in the manner specified in sub-sections (2) and (3),-

(a)

the current rent; and

(b)

the one-fourth of the total amount of arrears of rent for the said years without interest (hereinafter referred to as the one-fourth of the arrears of rent).

(2)

Any cultivating tenant may pay to the landlord or deposit in the Court or before the competent authority to the account of the landlord, the current rent and the one-fourth of the arrears of rent, on or before the 31st day of March 1991.

(3)

The Court in which or the competent authority before which the deposit is made under sub-section (2) shall cause notice of the deposit to be issued to the landlord and determine after a summary enquiry, whether the amount deposited represents the correct amount of the current rent and the one-fourth of the arrears of rent due from the cultivating tenant. If the Court or the competent authority finds that any further sum is due towards such current rent or one-fourth of the arrears of rent, it shall allow the cultivating tenant to deposit the further sum within the period specified in that sub-section or within such further time as the Court or competent authority may allow which shall not in any case exceed [four months]

[Substituted for the words 'two months' by the Tamil Nadu Cultivating Tenants Arrears of Rent (Relief) Second Amendment Act, 1991 (Tamil Nadu Act 25 of 1991).]

from the 31st day of March 1991 specified in the said sub-section. If the Court or the competent authority adjudges that no further sum is due or if the cultivating tenant deposits within the time referred to above such further sum as is ordered by the Court or the competent authority, the cultivating tenant shall be deemed to have paid the current rent and the one-fourth of the arrears of rent within the due date for the purposes of this Act. If having to deposit a further sum, the cultivating tenant fails to do so within the time allowed by the Court or the competent authority, the land lord may proceed against such cultivating tenant under the Public Trusts Act or the Tenants Protection Act, as the case may be, for the current rent or one-fourth of the arrears of rent.

(4)

In any suit or proceeding pending on the date of the publication of this Act, for the recovery of the current rent or any arrears of rent for any fasli year in the said years, payable by a cultivating tenant to the landlord or for the eviction of a cultivating tenant for non-payment of any such current rent or any arrears of rent, the Court or competent authority shall, if the cultivating tenant pays or deposits under this Act, the current rent and the one-fourth of the arrears of rent, and on the application of the cultivating tenant, pass an order dismissing, without costs, the suit or proceeding in so far as such suit or proceeding relates to such recovery or eviction.

(5)

If before the date of the publication of this Act, any decree or order has been passed in any suit or proceeding-

(i)

for the recovery of any arrears of rent referred to in sub-section (4); or

(ii)

for the eviction of a cultivating tenant for non-payment of any such current rent or one-fourth of the arrears of rent, the

Court or the competent authority shall, if the cultivating tenant pays or deposits under this Act, the current rent and the [one-sixth of the arrears of rent]

[Substituted for the words 'one-fourth of the arrears of rent' by the Tamil Nadu Cultivating Tenants Arrears of Rent (Relief) Amendment Act, 1991 (Tamil Nadu Act 16 of 1991).]

and on the application of any person affected by such decree or order whether or not he was a party thereto, vacate the decree or order in so far as such decree or order relates to such recovery or eviction.

6.

Bar of proceedings for eviction or recovery of arrears of rent.

(1)

No application shall be made for the eviction for non-payment of the current rent or any arrears of rent for any fasli year in the said years, and no suit shall be filed for the recovery of such current rent or arrears of rent,-

(i)

against any cultivating tenant till the 31st day of March 1991; and

(ii)

against the cultivating tenant in favour of whom further time has been granted by the Court or the competent authority under sub-section (3) of section 5, until the expiry of such time.

(2)

Subject to the provisions of sub-section (4) of section 5, all applications for the eviction of cultivating tenant for non-payment of current rent or the arrears of rent referred to in sub-section (1) and all suits, proceedings in execution of decrees or orders and other proceedings pending before a Court or competent authority for the recovery of any such current rent or arrears of rent, or for such eviction, shall stand stayed,-

(a)

till the 31st day of March 1991; and

(b)

till the expiry of further time granted by the Court or the competent authority under sub-section (3) of section 5.

(3)

All applications and all suits and proceedings stayed under this section shall, after the expiration of the time limit specified therein, be proceeded with against any cultivating tenant who has not paid or deposited under this Act the current rent and the one-fourth of the arrears of rent within the said time limit specified in sub-section (2) of section 5, subject to the provisions of any law which may be then in force, from the stage which had been reached when the application, suit or proceeding was stayed.

Part III ? Relief for Payment of Arrears of Rent by Payment in Instalments

7.

Relief for payment of arrears of rent by payment in instalments.

(1)

All arrears of rent payable by a cultivating tenant to the landlord for the said years and outstanding on the date of the publication of this Act, shall be deemed to be discharged, whether or not a decree or order has been obtained therefor, if such cultivating tenant pays to the landlord or deposits in the Court or before the competent authority, to the account of the landlord in the manner specified in sub-sections (2) and (3),-

(a)

the current rent; and

(b)

the one-third of the total amount of arrears of rent for the said years without interest (hereinafter referred to as the one-third of the arrears of rent).

(2)

Any cultivating tenant may pay to the landlord or deposit in the Court or before the competent authority to the account of the landlord,-

(a)

the current rent, on or before the 31st day of March 1991; and

(b)

the one-third of the arrears of rent in five equal annual instalments as specified below;

- (i)
the first instalment, on or before the 31st day of March 1991;
- (ii)
the second instalment, on or before the 31st day of March 1992;
- (iii)
the third instalment, on or before the 31st day of March 1993;
- (iv)
the fourth instalment, on or before the 31st day of March 1994; and
- (v)
the fifth instalment, on or before the 31st day of March 1995.

(3)
The Court in which or the competent authority before which the deposit is made under sub-section (2) shall cause notice of the deposit to be issued to the landlord and determine after a summary enquiry, whether the amount deposited represents the correct amount of the current rent and the instalment of the one-third of the arrears of rent due from the cultivating tenant. If the Court or the competent authority finds that any further sum is due towards such current rent or any instalment of the one-third of the arrears of rent, it shall allow the cultivating tenant to deposit the further sum within the period specified in that subsection or within such further time as the Court or competent authority may allow which shall not in any case exceed [four months]

[Substituted for the words 'two months' by the Tamil Nadu Cultivating Tenants Arrears of Rent (Relief) Second Amendment Act, 1991 (Tamil Nadu Act 25 of 1991).]

from the respective date specified in the said sub-section. If the Court or the competent authority adjudges that no further sum is due or if the cultivating tenant deposits within the time referred to above such further sum as is ordered by the Court or the competent authority, the cultivating tenant shall be deemed to have paid the current rent and the one-third of the arrears of rent within the due date for the purposes of this Act. If having to deposit a further sum, the cultivating tenant fails to do so within the time allowed by the Court or the competent authority, the landlord may proceed against such cultivating tenant under the Public Trusts Act or the Tenants Protection Act, as the case may be, for the current rent or the instalment of the one-third of the arrears of rent.

(4)
In any suit or proceeding pending on the date of the publication of this Act, for the recovery of the current rent or any arrears of rent for any fasli year in the said years payable by a cultivating tenant to the landlord or for the eviction of a cultivating tenant for non-payment of any such current rent or any arrears of rent, the Court or competent authority shall, if the cultivating tenant pays or deposits under this Act, the current rent and the one-third of the arrears of rent, and on the application of the cultivating tenant, pass an order dismissing, without costs, the suit or proceeding in so far as such suit or proceeding relates to such recovery or eviction.

(5)
If, before the date of the publication of this Act, any decree or order has been passed in any suit or proceeding-

- (i)
for the recovery of the current rent or any arrears of rent referred to in sub-section (4); or
 - (ii)
for the eviction of a cultivating tenant for non-payment of such current rent or any such arrears of rent,
- the Court or the competent authority shall, if the cultivating tenant pays or deposits under this Act, the current rent and the one-third of the arrears of rent and on the application of any person affected by such decree or order whether or not he was a party thereto, vacate the decree or order in so far as such decree or order relates to such recovery or eviction.

8.
Bar of proceedings for eviction or recovery of arrears of rent.

- (1)
 - (a)
No application shall be made for the eviction for non-payment of the current rent and no suit shall be filed for the recovery of such current rent against any cultivating tenant till the 31st day of March 1991.
 - (b)
No application shall be made for the eviction for non-payment of any arrears of rent for any fasli year in the said years,

and no suit shall be filed for the recovery of such arrears of rent,-

- (i)
against any cultivating tenant till the 31st day of March 1991;
- (ii)
against the cultivating tenant who has paid or deposited the current rent and the first instalment of the one-third of the arrears of rent, until the expiry of the period specified for the payment or deposit of the second instalment under sub-section (2) of section 7;
- (iii)
against the cultivating tenant who has paid or deposited the second instalment of the one-third of the arrears of rent, until the expiry of the period specified for the payment or deposit of the third instalment under the said sub-section (2);
- (iv)
against the cultivating tenant who has paid or deposited the third instalment of the one-third of the arrears of rent, until the expiry of the period specified for the payment or deposit of the fourth instalment under the said subsection (2);
- (v)
against the cultivating tenant who has paid or deposited the fourth instalment of the one-third of the arrears of rent, until the expiry of the period specified for the payment or deposit of the fifth instalment under the said subsection (2); and
- (vi)
against the cultivating tenant in favour of whom further time has been granted by the Court or the competent authority under sub-section (3) of section 7, until the expiry of such time.

(2)
Subject to the provisions of sub-section (4) of section 7, all applications for the eviction of cultivating tenant for non-payment of current rent or the arrears of rent referred to in sub-section (1) and all suits, proceedings in execution of decrees or orders and other proceedings pending before a Court or competent authority for the recovery of any such current rent or arrears of rent, or for such eviction, shall stand stayed-

- (a)
till the 31st day of March 1991;
- (b)
till the 31st day of March 1992, if the cultivating tenant has paid the current rent and the first instalment of the arrears of rent within the time specified in sub-section (2) of section 7;
- (c)
till the 31st day of March 1993, if the cultivating tenant has paid the second instalment of the one-third of the arrears of rent within the time specified in the said sub-section (2);
- (d)
till the 31st day of March 1994, if the cultivating tenant has paid the third instalment of the one-third of the arrears of rent within the time specified in the said sub-section (2);
- (e)
till the 31st day of March 1995, if the cultivating tenant has paid the fourth instalment of the one-third of the arrears of rent within the time specified in the said sub-section (2); and
- (f)
till the expiry of further time granted by the Court or the competent authority under sub-section (3) of section 7.

(3)
All applications and all suits and proceedings stayed under this section shall, after the expiration of the time limit specified therein, be proceeded with against any cultivating tenant who has not paid or deposited under this Act the current rent and the one-third of the arrears of rent within the said time limit specified in sub-section (2) of section 7 subject to the provisions of any law which may be then in force, from the stage which had been reached when the application, suit or proceeding was stayed.

Part IV ? Miscellaneous

9.

Exclusion of time for limitation.

- In computing the period of limitation prescribed for a suit for the recovery of the current rent or any arrears of rent for any fasli year in the said years or a proceeding for the eviction of a cultivating tenant for non-payment of any such

current rent or arrears of rent, or an application for the execution of a decree or order for such recovery or eviction, the time during which he was protected by section 6 or section 8, as the case may be, from such recovery or eviction shall be excluded.

Explanation. - In this section and in sections 6 and 8, a decree or order for the recovery of such current rent or arrears of rent or for the eviction of a cultivating tenant for non-payment of such current rent or arrears of rent, shall be deemed to be a decree or order for such recovery or eviction, notwithstanding that any other relief is also granted by such decree or order.

10.

Bar of jurisdiction of Civil Courts.

- Except as otherwise provided in this Act, no Civil Court shall have jurisdiction to decide or deal with any question which is by or under this Act required to be decided or dealt with by the competent authority or other authority.

11.

Revision by High Court.

- The competent authority shall be deemed to be a Court subordinate to the High Court for the purposes of section 115 of the Code of Civil Procedure, 1908 (Central Act V of 1908) and its orders shall be liable to revision by the High Court under the provisions of that section.

12.

Arrears barred by limitation not to be revived.

- Nothing in this Act shall be construed as reviving any claim for arrears of rent for any period before the date of the publication of this Act if such claim is barred by limitation on the said date any law for the time being in force.

13.

Right to restoration of possession of evicted cultivating tenant.

(1)

Notwithstanding anything contained in any judgement or decree or order of any Court, or other authority any cultivating tenant who had been evicted from any land on or after the 1st day of April 1990, but before the date of the publication of this Act, on the ground that such cultivating tenant was in arrear with respect to the current rent or the rent for any fasli year in the said years payable to the landlord shall, on application to the competent authority, within a period of three months after the date of such publication, be entitled to be restored to possession of such land and to hold it with all the rights and subject to all the liabilities of a cultivating tenant under the Tenants Protection Act or under the Public Trusts Act, as the case may be.

(2)

The provisions of sub-section (4) of section 4 of the Tenants Protection Act or, as the case may be, sub-section (2) of section 20 of the Public Trusts Act shall, so far as may be, apply to an application under sub-section (1).

14.

Act to override other laws, contract, etc.

- The provisions of this Act shall have effect notwithstanding anything inconsistent therewith contained in the Tenants Protection Act, the Public Trusts Act, the Tamil Nadu Cultivating Tenants Arrears of Rent (Relief) Act, 1980 (Tamil Nadu Act

15 of 1980

), the Tamil Nadu Cyclone and Flood Affected Areas Cultivating Tenants Arrears of Rent (Relief) Act, 1980 (Tamil Nadu Act 16 of 1980), the Tamil Nadu Cultivating Tenants (Special Provisions) Act, 1984 (Tamil Nadu Act

29 of 1984

), the Tamil Nadu Cyclone and Flood Affected Areas Cultivating Tenants (Special Provisions) Act, 1986 (Tamil Nadu Act 60 of 1986

), the Code of Civil Procedure, 1908 (Central Act V of 1908) or in any other law for the time being in force, or any custom, usage or contract, or decree or order of a Court or other authority.

15.

Power to make rules.

(1)

The State Government may make rules to carry out the purposes of this Act.

(2)

All rules made under this Act shall be published in the Tamil Nadu Government Gazette and, unless they are expressed to come into force on a particular day, shall come into force on the day on which they are so published.

(3)

Every rule made under this Act shall, as soon as possible after it is made, be placed on the Table of the Legislative Assembly and if, before the expiry of the session in which it is so placed or the next session, the Legislative Assembly makes any modification in any such rule or the Assembly decides that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be, so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

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